

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2244

By: Waldron

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 13-116, which relates to corporal punishment; requiring school districts to report corporal punishment administration annually; specifying report requirements; requiring the State Department of Education to compile and report corporal punishment data; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 13-116, is amended to read as follows:

Section 13-116. A. School district personnel shall be prohibited from using corporal punishment on students identified with the most significant cognitive disabilities according to criteria established by the State Department of Education unless addressed in an annual individualized education program (IEP) developed in accordance with the Individuals with Disabilities Education Act (IDEA).

B. A waiver to the provisions of subsection A of this section shall be granted if the parent or legal guardian of a student provides written consent.

1 C. As used in this section, "corporal punishment" means the
2 deliberate infliction of physical pain by hitting, paddling,
3 spanking, slapping, or any other physical force used as a means of
4 discipline.

5 D. On an annual basis, each school district shall report to the
6 State Department of Education the following information:

7 1. The number of times corporal punishment was administered by
8 district personnel;

9 2. A record of the grade, age, race, gender, and disability
10 status of the student receiving corporal punishment; and

11 3. A record of the personnel administering the punishment, the
12 date and time of the incident, and the personnel who witnessed the
13 administration of corporal punishment.

14 E. On an annual basis, the State Department of Education shall
15 provide a compilation report on the administration of corporal
16 punishment to the Oklahoma Commission on Children and Youth.

17 SECTION 2. This act shall become effective July 1, 2025.

18 SECTION 3. It being immediately necessary for the preservation
19 of the public peace, health or safety, an emergency is hereby
20 declared to exist, by reason whereof this act shall take effect and
21 be in full force from and after its passage and approval.

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